

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 20-028
Amendments to Title 2, Chapter 4, Article B, Section 2-425
of the Chickasaw Nation Code
(Judicial Department Salaries)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 1 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2003.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Section 2-245 of the Chickasaw Nation Code (additions and case changes are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2003:

“SECTION 2-425 JUDICIAL DEPARTMENT SALARIES.

~~A.~~—The ~~base~~ salary of each ~~for the~~ Justices of the Supreme Court ~~of the Chickasaw Nation~~ shall be ~~the sum of three thousand dollars (\$3,000) per month, plus a three and one half percent (3.5%) increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to twenty five percent (25%) of each Justice’s total annual salary to a retirement/investment plan, as directed by the Justice. The Justice that is elected to serve as Chief Justice shall receive \$650.00 per month, provided that the Justice that is elected to serve a term as Presiding Justice shall receive an additional \$100.00 per month for the duration of time in which he or she serves in that capacity.~~

~~—B. Attendance at one or more scheduled, special or called meetings or other official gathering that involves participation in official business of the Chickasaw Nation shall entitle a Justice an additional allowance of \$150.00 for the meeting day. However, should attendance at such scheduled, special or called meeting or other official gathering by a Justice exceeds three (3) hours, then the Justice shall be entitled to receive \$300.00 for the meeting day. In no event shall a Justice’s~~

~~additional allowance exceed \$300.00 per meeting day.~~

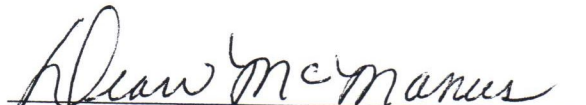
~~C. Attendance at one or more scheduled conferences, training sessions, seminars, or judicial class functions that involve participation in official business of the Chickasaw Nation Tribal court, with Tribal court prior authorization, shall entitle each member an allowance of \$100.00 per meeting day for their participation."~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 19, 2003, by a vote of 7 ayes, 5 nays, 0 abstentions.



Chairperson

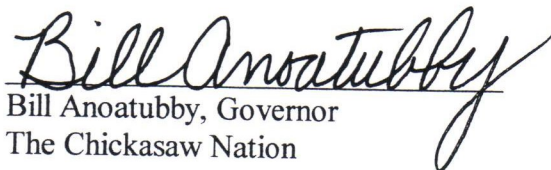
Chickasaw Tribal Legislature



Secretary

Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

SEP 19 2003

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Explanation: The intent of this resolution is to establish starting salary levels for the elected officials of the Judicial Department, to keep those salaries competitive and reasonable by establishing a system of timely compensation increases and to reward long term commitments to public service.

Requested By: D. Scott Colbert, Chairman
Finance Committee

Presented By: Wanda Blackwood Scott, Chairperson